

Ross on Crime
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Competence of witness
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Competence of witness

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[3.4100] Proof

Where competence is in issue the party calling the witness has the onus of proving competence.

In [R v Yacoob \(1981\) 72 Cr App R 313](#) the trial judge had to decide whether the witness was married to the accused. At that time the legislation would have disqualified her from giving evidence. Watkins LJ giving the judgment of the court said (at 316–317):

The beginning of a trial is obviously the appropriate time for the issue of the competence and compellability of a prosecution witness to be raised and determined. Whether the issue can be properly considered in the absence of oral evidence from at least the witness whose competence is challenged depends upon the circumstances affecting that person.

Further (at 317):

As to the burden of proof in this context, it is for the prosecution, once the issue of the competence of one of its witnesses is raised, to prove that that person is competent to testify. See *Cross on Evidence* (5th ed), p 75, where it is stated: “Decisions as to which party bears the burden of establishing a fact constituting a condition precedent to the admissibility of an item of evidence belong to the law of evidence. However, there is very little authority on the subject, no doubt because, as a matter of common sense, the conditions of admissibility have to be established by those alleging that they exist”.

The burden will be discharged if the trial judge is satisfied beyond a reasonable doubt upon admissible and sufficient evidence of competence.

In *R v T* (1998) 71 SASR 265; 102 A Crim R 222 (CCA) Doyle CJ said (at 271, 228):

It is generally accepted that questions as to the competence of a witness to give evidence are for the judge to determine. Such an issue should be determined by the judge on the voir dire: see *Demirok v The Queen* (1977) 137 CLR 20; 14 ALR 199 at 30–31 (CLR) per Gibbs J, per Stephen J (at 32) and per Aickin J (at 39); Archbold, *Criminal Pleading Evidence and Practice* (1997) pars 8–37. Commonsense suggests that a question as to the competence of a witness should be raised, and determined by the judge, before the witness is sworn or begins to give evidence: see Archbold 8–37 and 8–38; KD Stephens, *Voire Dire Law* (1997), pp 131–132; cf *R v Yacoob* (1981) 72 Cr App R 313 at 316–317.

The only authority on point that I have found suggests that if the issue of the competence of a prosecution witness is raised, it is for the prosecution to prove that the witness is competent, and to do so beyond reasonable doubt upon admissible and sufficient evidence: see *R v Yacoob* (1981) 72 Cr App R 313.

[3.4105] Child

In *R v Brasier* (1779) 1 Leach 199; 168 ER 202 the court said (at 200; 203):

There is no precise or fixed rule as to the time within which infants are excluded from giving evidence; but their admissibility depends upon the sense and reason they entertain of the danger and impiety of falsehood, which is to be collected from their answers to questions propounded to them by the Court.

See also

Child at [3.1800].

[R v WAU \[2013\] QCA 265](#).

[3.4110] Crime and interest

A witness is not incompetent by crime or interest.

Uniform Evidence Acts s 12;

Qld: *Evidence Act 1977* s 6;

WA: *Evidence Act 1906* s 6;

SA: *Evidence Act 1929* s 15;

NZ: *Evidence Act 2006* s 71;

Can: *Canada Evidence Act* s 3.

[3.4115] Intellectual disability

In [Lau v The Queen \(1991\) 6 WAR 30; 58 A Crim R 390 \(CCA\)](#) the principal prosecution witness had Down's Syndrome. The trial judge allowed her to give evidence unsworn, but he did not make proper inquiries contemplated by the [Evidence Act 1906 \(WA\)](#). The appeal was allowed.

See also

[Hoogwerf v The Queen \(1992\) 63 A Crim R 302 \(WA CCA\)](#).

[3.4120] Accused

An accused is a competent witness in the accused's own case.

Where the prosecution seeks to call an accused against a co-accused, the accused must first be dealt with:

- by nolle prosequi;
- by indemnity;
- by pleading guilty and being sentenced.

See also

Accomplice at [\[1.1600\]](#); and **Indemnity** at [\[9.1600\]](#)

[3.4125] Competence of spouse and family for prosecution

Legislation

By legislation the spouse of an accused is competent to give prosecution evidence:

Uniform Evidence Acts s 18;

Qld: *Evidence Act 1977* s 8(2) and 8(3);

WA: *Evidence Act 1906* s 9;

SA: *Evidence Act 1929* s 21;

NZ: *Evidence Act 2006* s 71 (competent and compellable).

Objection

A spouse (or family member) can object to giving prosecution evidence against an accused:

R v Wright (2004) 155 ACTR 50; 186 FLR 76; 149 A Crim R 298 (Higgins CJ);

R v YL (2004) 187 FLR 84 (ACT Crispin J);

Callanan v B [2005] 1 Qd R 348; (2004) 151 A Crim R 287 (CA).

A de facto spouse cannot take that objection:

S v Boulton (2006) 151 FCR 364; 232 ALR 92; 162 A Crim R 489 (FCA).

Nevertheless a wife can choose to give evidence against a husband: *R v Sorby* [1986] VR 753; (1986) 21 A Crim R 64 at 772, 84 (CCA).

See also

Demirok v The Queen (1977) 137 CLR 20; 14 ALR 199.

Witness (Spouse and relative) at [23.795].

[3.4130] Voir dire

It is for the judge alone to determine competence. That is done on voir dire: *Demirok v The Queen* (1977) 137 CLR 20; 14 ALR 199 per Gibbs J (at 31; 208) and Stephen J (at 32; 209).

Applied:

R v Harding [1989] 2 Qd R 373; (1989) 42 A Crim R 169 (CCA);

Lau v The Queen (1991) 6 WAR 30; 58 A Crim R 390 (CCA);

The voir dire takes place before the witness is sworn or begins to give evidence: *R v T* (1998) 71 SASR 265; 102 A Crim R 222 (CCA) at 271; 228 per Doyle CJ.

See also

Voir dire at [22.1700]; and **Witness** at [23.700].